



U.S. Department
of Transportation

Research and
Special Programs
Administration

OCT 25 1993

407 Seventh Street, N.E.
Washington, D.C. 20003

DOT-E 11142

EXPIRATION DATE: March 30, 1994

(FOR RENEWAL, SEE 49 CFR SECTION 107.105.)

1. GRANTEE: Gabriel Chemicals, Incorporated
Houston, Texas.
2. PURPOSE AND LIMITATION: This emergency exemption authorizes the transportation in commerce of a Class 8 material meeting the definition of a poison inhalation material in certain DOT Specification 112S340W tank cars. This exemption provides no relief from any regulations other than as specifically stated.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR 172.102 Special Provision B74.
5. BASIS. This emergency exemption is based on Gabriel Chemical, Incorporated's application dated October 30, 1992, and supplemental information dated September 10, 1993, submitted in accordance with 49 CFR 107.113, and a determination that it is necessary to prevent serious economic loss.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description/proper shipping name	Hazard Class or Division	Identification number	Packing Group
Chlorosulfonic acid	8	UN1754	I

7. PACKAGING(S) and SAFETY CONTROL MEASURES:
 - a. Packagings prescribed are DOT 112S340W tank cars.
 - b. Each tank car operating under the terms of this exemption must be marked DOT-E 11142 in four inch letters on a contrasting background above the DOT specification number.

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8. SPECIAL PROVISIONS.

Persons who receive packages covered by this exemption may re-offer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are complied with, and a current copy of this exemption is maintained at each facility from which such re-offering occurs.

9. MODES OF TRANSPORTATION AUTHORIZED. Rail freight.

10. MODAL REQUIREMENTS:

a. The Federal Railroad Administration (FRA) is to be notified if any unusual incident such as derailment or exterior tank damage occurs during the movement by contacting the:

Federal Railroad Administration
Office of Safety, RRS-12
400 Seventh Street, S.W.
Washington, D.C. 20590
(202) 366-9178 or 366-0549

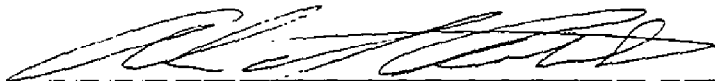
11. COMPLIANCE. Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Hazardous Materials Transportation Act:

- All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- Registration required by 49 CFR 107.601 et seq., when applicable.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect unless a regulation has been amended making the exemption no longer necessary.

12. REPORTING REQUIREMENTS. The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.)

Issued at Washington, D.C.:



Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

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(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590. Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Dist: FRA